

Per Curiam

‘common to all members of the public.’” *Richardson*, 418 U. S., at 176–177. See also *id.*, at 191 (Powell, J., concurring) (“The power recognized in *Marbury v. Madison*, 1 Cranch 137 (1803), is a potent one. Its prudent use seems to me incompatible with unlimited notions of taxpayer and citizen standing”).

The same day, in *Schlesinger v. Reservists Comm. to Stop the War*, 418 U. S. 208 (1974), we addressed standing to bring a challenge under the Constitution’s Incompatibility Clause, which provides that “no Person holding any Office under the United States, shall be a Member of either House during his Continuance in Office.” Art. I, § 6, cl. 2. Citizen-taxpayers brought a lawsuit contending that Members of Congress who were also members of the military Reserves violated the Incompatibility Clause. This Court dismissed for lack of standing. It “reaffirm[ed] *Lévit* in holding that standing to sue may not be predicated upon an interest of the kind alleged here which is held in common by all members of the public, because of the necessarily abstract nature of the injury all citizens share.” 418 U. S., at 220. Refusing to entertain generalized grievances ensures that “there is a real need to exercise the power of judicial review” in a particular case, and it helps guarantee that courts fashion remedies “no broader than required by the precise facts to which the court’s ruling would be applied.” *Id.*, at 221–222. In short, it ensures that courts exercise power that is judicial in nature.

The instant case parallels *Fairchild*, *Lévit*, and their progeny. The plaintiffs here are four Colorado voters. Three days after the Colorado Supreme Court issued its decision in *Salazar*, they filed a complaint alleging that “Article V, § 44 of the Colorado Constitution, as interpreted in *Salazar*, violated [the Elections Clause] of the U. S. Constitution by depriving the state legislature of its responsibility to draw congressional districts.” *Lance v. Davidson*, 379 F. Supp. 2d 1117, 1122 (2005). In light of the discussion

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above, the problem with this allegation should be obvious: The only injury plaintiffs allege is that the law—specifically the Elections Clause—has not been followed. This injury is precisely the kind of undifferentiated, generalized grievance about the conduct of government that we have refused to countenance in the past. It is quite different from the sorts of injuries alleged by plaintiffs in voting rights cases where we have found standing. See, *e. g.*, *Baker v. Carr*, 369 U. S. 186, 207–208 (1962). Because plaintiffs assert no particularized stake in the litigation, we hold that they lack standing to bring their Elections Clause claim.

Our two decisions construing the term “Legislature” in the Elections Clause do not contradict this holding. Each of these cases was filed by a relator on behalf of the State rather than private citizens acting on their own behalf, as is the case here. See *State ex rel. Smiley v. Holm*, 184 Minn. 647, 238 N. W. 792 (1931) (*per curiam*), *rev’d sub nom. Smiley v. Holm*, 285 U. S. 355 (1932); *Ohio ex rel. Davis v. Hildebrant*, 241 U. S. 565 (1916). In neither case did we address whether a private citizen had alleged a “concrete and particularized” injury sufficient to satisfy the requirements of Article III.

The judgment of the United States District Court for the District of Colorado is therefore vacated in part, and the case is remanded with instructions to dismiss the Elections Clause claim for lack of standing. We affirm the District Court’s dismissal of the Petition Clause claim.

It is so ordered.

Syllabus

TRAVELERS CASUALTY & SURETY CO. OF AMERICA
v. PACIFIC GAS & ELECTRIC CO.CERTIORARI TO THE UNITED STATES COURT OF APPEALS FOR
THE NINTH CIRCUIT

No. 05–1429. Argued January 16, 2007—Decided March 20, 2007

After respondent (PG&E) filed for Chapter 11 bankruptcy, petitioner (Travelers), which had previously issued a surety bond to guarantee PG&E's payment of state workers' compensation benefits, asserted a claim in the bankruptcy action to protect itself should PG&E default on the benefits. With the Bankruptcy Court's approval, PG&E agreed to insert language into its reorganization plan and disclosure statement to protect Travelers in case of such a default. Additional litigation over the negotiated language nevertheless ensued and was ultimately resolved by a court-approved stipulation stating, *inter alia*, that Travelers could assert a general unsecured claim for attorney's fees, which were authorized in the parties' original indemnity agreements. When Travelers filed an amended claim for such fees, PG&E objected based on the rule the Ninth Circuit adopted in its prior *Fobian* decision that where the litigated issues involve not basic contract enforcement questions, but issues peculiar to federal bankruptcy law, attorney's fees generally will not be awarded. The Bankruptcy Court rejected Travelers' claim on that basis, and the District Court and the Ninth Circuit affirmed.

Held:

1. Federal bankruptcy law does not disallow contract-based claims for attorney's fees based solely on the fact that the fees were incurred litigating bankruptcy law issues. Because the *Fobian* rule finds no support in federal bankruptcy law, the Ninth Circuit erred in disallowing Travelers' claim. Pp. 448–454.

(a) The American rule that “the prevailing litigant is ordinarily not entitled to collect a reasonable attorneys’ fee from the loser,” *Alyeska Pipeline Service Co. v. Wilderness Society*, 421 U. S. 240, 247, may be overcome by, *inter alia*, an “enforceable contract” allocating such fees, *Fleischmann Distilling Corp. v. Maier Brewing Co.*, 386 U. S. 714, 717. A contract allocating attorney's fees that is enforceable under substantive, nonbankruptcy law is allowable in bankruptcy except where the Bankruptcy Code provides otherwise. Cf. *Security Mortgage Co. v. Powers*, 278 U. S. 149, 154. The Code does not do so here. Pp. 448–449.

(b) Under the Bankruptcy Code, the bankruptcy court “shall allow” a creditor's claim “except to the extent that” the claim implicates any of